4139

Executive Order

AUTHORIZING THE ALIEN PROPERTY CUSTODIAN TO SELL CERTAIN PROPERTY AT PRIVATE SALE

By virtue of the authority vested in me by an Act of Congress entitled "An act to define, regulate, and punish trading with the enemy and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendment to such act embodied in "An act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such act embodied in "An act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses, and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination, order, rule and regulation:

The Alien Property Custodian is hereby authorized to sell at private sale, at such time and place as to him or to his authorized agent may seem advisable, without public or other advertisement, for and in consideration of the sum of TWELVE THOUSAND FIVE HUNDRED ($12,500.00) DOLLARS, certain real estate now being held and administered by him as such Alien Property Custodian, and heretofore, upon requirement, conveyed, transferred, assigned and delivered to him as the property of FRANZ FISHER and MRS. HERMAN HENDRICK, residing in Germany, whom, after investigation, he did determine to be enemies within the purview of said Act as amended, which said real estate is situate in the Borough of Brooklyn, City and State of New York, and described as follows, to-wit:

> BEGINNING at a point on the northerly side of Ainslie Street, distant one hundred (100) feet westerly from the northwesterly corner of Ainslie and Smith (now called Humboldt) Streets; thence running northerly parallel with Smith (now called Humboldt) Street, one hundred (100) feet; thence westerly, parallel with Ainslie Street, fifty (50) feet; thence southerly, parallel with Smith (now called Humboldt) Street, one hundred (100) feet to the northerly side of Ainslie Street; and thence easterly along the northerly side of Ainslie Street fifty (50) feet to the point or place of beginning. Known as numbers 269–271 Ainslie Street.

My reasons for the foregoing determination, order, rule and regulation are:
(a) An advantageous offer for the purchase of the said real estate has been received by the Alien Property Custodian;
(b) An attempted sale at public auction would be a useless formality and would involve unnecessary expenses, delay and inconvenience, which should be avoided.

CALVIN COOLIDGE

THE WHITE HOUSE,
January 27, 1925.

[No. 4139]

GOVERNMENT PRINTING OFFICE